

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

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Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

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Date: September 4, 2026

1	Farraj vs. LBC Limited Partnership 2025-01518015	Motion to Compel Arbitration Defendants LBC Limited Partnership, LLC, Josh Hillsberg, Bobby Huq, and Christine Tran's Motion to Compel Arbitration is GRANTED. Defendants move to compel Plaintiff Farah Farraj to arbitration based on an arbitration agreement she signed at the start of her employment as a Sales Associate with LBC
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		Limited Partnership, LLC ("LBC") dba Mathis Brothers Furniture. The parties do not dispute the FAA governs the arbitration agreements. "Under the Federal Arbitration Act (FAA; 9 U.S.C. § 1 et seq.), a written agreement to arbitrate 'shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract' (9 U.S.C. § 2.) Unless an exception applies, if the matter is arbitrable, the court 'shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement' (9 U.S.C. § 3.) [I]n ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. General principles of California contract law guide the court in making this determination. The party seeking arbitration bears the burden of proving the existence of an arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (Little v. Pullman (2013) 219 Cal.App.4th 558, 565.) Existence of Arbitration Agreement Under Code of Civ. Proc. §1281.2, the first thing the Court must decide is whether there was an agreement to arbitrate, a meeting of the minds. (Mitri v. Arnel Management Co. (2007) 157 Cal.App.4th 1164, 1169.) This analysis is no different under the Federal Arbitration Act ("FAA") – there must be an agreement in writing to submit a controversy to arbitration. (9 U.S.C.A. § 2.) "In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to
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	the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and “[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (Garcia v. Stoneledge Furniture LLC (2024) 102 Cal.App.5th 41, 51 [cleaned-up].) Defendants have attached a “Mutual Agreement to Arbitrate Claim” executed by Plaintiff on December 7, 2021 (the “Agreement”). Thus, Defendants have met their initial burden to show an agreement to arbitrate. The burden now shifts to Plaintiff to identify a factual dispute as to the agreement’s existence. In Opposition, Plaintiff contends the Agreement is unenforceable because while she was initially hired by LBC in December 2021, her employment ended around early 2023 as she was unable to return to work following her FMLA leave. (Farraj Decl., ¶¶ 2, 3.) Plaintiff was subsequently rehired around April 2023, and she did not sign another arbitration agreement. (Farraj Decl., ¶ 3.) The alleged wrongful conduct occurred after she was promoted to Sales Manager in April 2024. (Complaint, ¶¶ 11-14.) Thus, there is no arbitration agreement that covers Plaintiff’s claims. In Vasquez v. SaniSure (2024) 101 Cal.App.5th 139, the court found that an employee’s revoked her agreement to arbitrate by terminating her employment with the defendant. (Id. at 144.) The plaintiff did not sign a second set of arbitration agreements during her second stint of employment. The court found that for the plaintiff’s claims to be subject to arbitration, the defendant must show that the parties agreed that the agreements the plaintiff signed during her first stint of employment would apply to her second, e.g. a subsequent agreement that her getting rehired was
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	contingent on agreement to arbitration. (Id. at 144-145.) Here, Plaintiff contends there was no mention of an arbitration agreement when she was rehired or any statement by Defendants indicating that the previous arbitration agreement was to apply to her second employment stint. (Farraj Decl., ¶ 4.) On reply LBC argues "Plaintiff's personnel file confirms Plaintiff executed a second Mutual Agreement to Arbitrate Claims on April 7, 2023." (Reply at p.2:6-10.) But Defendants did not submit as evidence the alleged April 7, 2023, agreement with their moving papers, nor did they argue the existence of such an agreement. Defendants only produced the April 2023 agreement when they filed their reply papers. The motion was continued to allow Plaintiff the opportunity to respond to the April 2023 agreement, which the Court has agreed to consider. Plaintiff argues the internal date format creates a factual dispute regarding when the 2023 agreement was signed. The 2021 agreement's signature page is dated 12/7/21, which is read as December 7, 2021 – a MM/DD/YYYY format. On the other hand, the 2023 agreement indicates it was executed on 7/4/23 using a DD/MM/YYYY format, to arrive at April 7, 2023, which aligns with Plaintiff's rehire date. If the MM/DD/YYYY format is used, the date would actually read 7/4/23, which is a federal holiday when no onboarding would occur. Plaintiff's declaration states that when she writes a date she writes it in the format of MM/DD/YYYY as the first arbitration agreement reads. Plaintiff argues that Defendants' failure to address this discrepancy fatally undermines the authenticity of the 2023 agreement and when it was actually executed. In response to Plaintiff's argument, Defendants argue the date format does not
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	create a genuine authenticity dispute. The date was placed on the agreement by Plaintiff. However whether, the date is interpreted – 7/4/23 or 4/7/23 – it does not affect the year, the authenticity of Plaintiff’s signature, the existence of the agreement, or the fact that it covers the claims brought by Plaintiff. In <i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, the court held that “[i]f a party confronted with his or her handwritten signature on an arbitration agreement is unable to allege that the signature is inauthentic or forged, the fact that the person does not recall signing the agreement neither creates a factual dispute as to the signature’s authenticity nor affords an independent basis to find that a contract was not formed.” (Id. at 758.) Although Plaintiff initially declared that she did not sign another arbitration agreement when she was rehired in April 2023, when presented with the 2023 agreement and the opportunity to challenge the authenticity of it, she does not deny signing it. Plaintiff does not deny the signature or the handwritten date on the 2023 agreement is in her handwriting. As stated in <i>Iyere</i>, an individual normally can recognize or disavow a handwritten signature that purports to be her own. (Ibid.) If Plaintiff did not sign the 2023 agreement, she had ample opportunity to disavow the signature. But she has not. Although Plaintiff contends she has not been able to conduct discovery to challenge the authenticity of the 2023 agreement, such argument is without merit. If Plaintiff believes the signature on the 2023 agreement was forged, then she should have stated that in her declaration. Plaintiff next argues that the declaration of Charles Folkner constructs an elaborate employment narrative—a leave of absence beginning January 1, 2023, exhaustion of FMLA/CFRA benefits, a voluntary resignation on February 14, 2023, and a rehire on April 7, 2023—yet not a single one of these
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		assertions is corroborated by any contemporaneous business record. Again, such argument is without merit. Plaintiff's declaration filed in opposition to the motion attests as follows: "I was initially hired in December 2021 and subsequently in around early 2023, my employment ended as I was unable to return to work following her [sic] FMLA leave. I was subsequently rehired in or around April 2023 and I did not sign any arbitration agreement when I was rehired." (Farraj Decl., ¶¶ 2,3.) Thus, Plaintiff's claim of some made up narrative is contradicted by her own declaration which confirms she was unable to return to work following her leave and then rehired in April 2023. Based on the foregoing, the Court finds that Plaintiff has failed to identify a factual dispute as to the April 2023 arbitration agreement. Therefore, Defendants have sustained their burden in demonstrating an agreement to arbitrate. EFAA Plaintiff opposes the motion on the grounds that (1) the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA) prohibits compelling arbitration, and (2) the arbitration agreement is unconscionable. The EFAA states in part at 9 U.S.C. § 402(a), "at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute. . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute." "The term 'sexual assault dispute' means a dispute involving a nonconsensual sexual act or sexual contact." (9 U.S.C. § 401(3).) "The term 'sexual harassment dispute' means a dispute relating to conduct that is alleged to constitute sexual harassment under
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		applicable Federal, Tribal, or State law.” (9 U.S.C. § 401(4).) Under the EFAA, when a plaintiff’s lawsuit contains at least one claim that fits within the scope of the act, the arbitration agreement is unenforceable as to all claims asserted in the lawsuit. (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 800.) There are no allegations of a “sexual assault dispute” in the Complaint. Thus, the inquiry is whether Plaintiff’s Complaint has stated a valid “sexual harassment dispute” under applicable Federal, Tribal or State Law. Under California’s Fair Employment and Housing Act (“FEHA”) a hostile work environment sexual harassment requires a plaintiff employee to show: (1) he or she was subjected to unwelcome sexual advances, conduct or comments; (2) the harassment was based on sex; and (3) the harassment was sufficiently severe or pervasive to alter the conditions of employment and create an abusive working environment. (Lyle v. Warner Brothers (2006) 38 Cal.4th 264, 279.) “[C]laims for sexual discrimination and sexual harassment are distinct causes of action, each arising from different provisions of the FEHA.” (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 705; Miller v. Dep’t of Corr. (2005) 36 Cal.4th 446, 460 n.5.) While the two theories may “overlap as an evidentiary matter,” (Id. at 709), FEHA differentiates them in substance: Discrimination refers to bias in the exercise of official actions on behalf of the employer [e.g., assignments, discipline, scheduling, management decisions], and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace [i.e., hostile or abusive conduct that targets an employee because of sex]. (Id. at 707.) The allegations of alleged harassment in paragraph 16 of the Complaint, predominantly describe assignments, discipline, and management decisions, not
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	interpersonal hostility "because of sex." Plaintiff does not allege any sexualized conduct of the kind required to state a sexual harassment claim such as unwelcome sexual advances, requests for sexual favors, and other verbal, physical, or visual conduct of a sexual nature. Plaintiff cites to <i>Roby v. McKesson</i> (2010) 47 Cal.4th 686, arguing that sexual harassment may be inferred through subtle discrimination. In <i>Roby</i>, the plaintiff offered evidence that her supervisor would announce to the office that she was "absent again," ignore her at staff meetings, and make demeaning comments, gestures and facial expressions in response to the plaintiff's body odor and arm sores which were caused by a medical condition. The court found that such evidence was sufficient to support the jury's conclusion that the supervisor harassed the plaintiff in violation of the FEHA. Here, there is no single actor involved in the alleged misconduct or any pattern of hostile interactions in the workplace. The comments cited by Plaintiff were made by both male and female co-workers, and most had nothing to do with Plaintiff's sex, but comments about her competency and/or interpersonal disputes. While she alleges employees would undermine her authority and one called her "weak" and stated "she doesn't know what she is doing," these examples demonstrate at most rude behavior but do not indicate they were motivated by some discriminatory animus. Similarly, a female's employee's statement that she could not "handle working with a woman manager" and could not "take that my manager is a woman," while offensive, do not establish some discriminatory animus versus the musings of another employee. "[A]nnoying or 'merely offensive' comments in the workplace are not actionable..." (Lyle, supra, 38 Cal.4th at 283.) The mere fact that words may have sexual content or connotations, or discuss sex is not sufficient to establish sexual harassment. (Id. at 279-280.)
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		Moreover, the allegations in the Complaint do not demonstrate the behavior complained of was pervasive. "With respect to the pervasiveness of harassment, courts have held an employee generally cannot recover for harassment that is occasional, isolated, sporadic, or trivial; rather, the employee must show a concerted pattern of harassment of a repeated, routine, or a generalized nature." (Lyle v. Warner Bros. Television Prod. (2006) 38 Cal.4th 264, 283-284.) In this case, Plaintiff has not alleged a repeated pattern of harassment as occurred in Roby. Nothing more is alleged than a few off hand comments and incidents, not an ongoing pattern of comments or shunning. Therefore, Plaintiff has not stated a claim for sexual harassment and the EFAA does not preclude compelling this case to arbitration. Unconscionability Procedural and substantive unconscionability "must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability." (Armendariz v. Foundation Health Psychcare Servs., Inc. (2000) 24 Cal. 4th 83, 114, 6 P.3d 669, 690.) However, they need not be present in the same degree. (Ibid.) A sliding scale approach is used and the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required. (Ibid.) "The party resisting arbitration bears the burden of proving unconscionability." (Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC (2012) 55 Cal. 4th 223, 247.) a. Procedural Unconscionability "Procedural unconscionability focuses on the elements of oppression and surprise." (Serafin v. Balco Properties Ltd., LLC (2015) 235 Cal. App. 4th 165, 177.) "Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice. Surprise involves the extent to which the terms of the
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		bargain are hidden in a prolix printed form drafted by a party in a superior bargaining position.” (Ibid.) “[A] finding of procedural unconscionability does not mean that a contract will not be enforced, but rather that courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided.” (Baltazar v. Forever 21, Inc. (2016) 62 Cal.4th 1237, 1244.) Plaintiff argues the arbitration agreement is procedurally unconscionable because it was exclusively drafted by Defendant and Plaintiff lacks sophistication to understand and appreciate the terms of the contract terms. Plaintiff, however, was not a low level employee. She was a Sales Manager for Defendant, which suggest some level knowledge, including the ability to read. If Plaintiff did not understand what an arbitration agreement meant, the agreement states in bold print “EMPLOYEE FURTHER ACKNOWLEDGES THAT EMPLOYEE HAS BEEN GIVEN THE OPPORTUNITY TO DISCUSS THIS AGREEMENT WITH LEGAL COUNSEL OF HIS/HER OWN CHOOSING AND HAS AVAILED HIMSELF/HERSELF OF THAT OPPORTUNITY TO THE EXTENT EMPLOYEE WISHES TO DO SO.” Thus, the degree of procedurally unconscionability is low and only due to the fact that it was drafted by Defendant, not Plaintiff’s purported lack of sophistication. b. Substantive Unconscionability “Substantive unconscionability focuses on the actual terms of the agreement and evaluates whether they create ‘overly harsh’ or ‘one-sided’ results.” (Serafin v. Balco Properties Ltd., LLC (2015) 235 Cal.App.4th 165, 177.) “A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be ‘so one-sided as to ‘shock the conscience.’” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 246.)
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	Plaintiff cites to Ramirez v. Charter Communications, Inc. (2024) 16 Cal.5th 478, wherein the California Supreme Court allegedly stated "it appears the real purpose of the agreement is to subject the employee to arbitration as a means of maximizing employer advantage. (Id. at 495; see Opp., p. 13.) A reading of Ramirez, however, does not reveal such a statement. Rather, the full quote is as follows: "If the arbitration system established by the employer is indeed fair, then the employer as well as the employee should be willing to submit claims to arbitration. Without reasonable justification for this lack of mutuality, arbitration appears less as a forum for neutral dispute resolution and more as a means of maximizing employer advantage. Arbitration was not intended for this purpose." (Ibid.) Plaintiff does not argue the arbitration agreement lacks mutuality. In fact, the agreement states: "The Parties mutually consent to the resolution by arbitration of all claims or controversies (claims), past, present or future, relating to or arising out of the Employee s employment, remuneration or termination, that Employee may have against the Company or any of its related entities, or its owners, directors, officers, managers, employees, or agents; and all claims that the Company may have against Employee." Therefore, the agreement is not substantively unconscionable. Based on the foregoing, the Court finds the 2023 arbitration agreement is not unconscionable. Accordingly, the motion to compel arbitration is GRANTED and the action is stayed pending completion of the arbitration. ***ADR Status Review set for August 2, 2027 at 9 AM. Moving Parties shall give notice of all the above.
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2	Doe #1 F.H. vs. Roe 1 2022-01299995	Motion for Summary Judgment and/or Adjudication Defendant General Council of the Assemblies of God's (General Council) motion for summary judgment is GRANTED. 1st, 2nd, and 7th causes of action for "sexual abuse of a minor," intentional infliction of emotional distress, and battery. General Council has met its initial burden to show the first, second, and seventh causes of action for "sexual abuse of a minor," intentional infliction of emotional distress (IIED), and battery have no merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850-851 [same].) Both the first and seventh causes of action for "sexual abuse of minor" and battery are based on the perpetrator "Darryl's" sexual abuse of plaintiff John Doe #1 F.H, and defendants' alleged liability for the same based on a (1) vicarious liability and (2) ratification theory. (See FAC ¶¶ 35-38, 81-86.) The second cause of action for IIED is similar; it too is based on the perpetrator's sexual abuse of plaintiff (FAC ¶ 41), and alleged against defendants based on a ratification theory (id. ¶ 42). General Council has met its initial burden to show that plaintiff will not be able to prevail on any of these causes of action under a vicarious liability theory because (1) the perpetrator was not an agent/employee of General Council, and (2) sexually abusing a child is not within the course and scope of a youth leader's agency or employment with a church/religious organization. (See Mary M. v. City of Los Angeles (1991) 54 Cal.3d 202, 208 [vicarious liability]; see CACI No. 3701 [vicarious liability elements]; Rita M. v. Roman Catholic Archbishop (1986) 187 Cal.App.3d 1453, 1461 (Rita M.).)
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		General Council's evidence shows plaintiff was allegedly abused by perpetrator "Darryl" while he was participating in the Royal Rangers youth group program at his church, the Walnut Valley Assembly of God Church of La Puente (Walnut Valley), and that the perpetrator was a youth leader/instructor of this Royal Rangers program at Walnut Valley. (See Def. SSMF Nos. 18, 35-37, 81.) General Council's evidence shows that it is an entirely separate legal entity from Walnut Valley; it was not involved in and had no authority or control whatsoever over the Royal Rangers program at plaintiff's church or any of the agents/employees of that program or church; and that did not otherwise have any agency/employment relationship with the perpetrator at any time. (See CACI No. 3701 [vicarious liability elements, respondeat superior requires an agency/employment relationship]; see also Def. SSMF Nos. 1-17, 20-31; Kesner Decl. ¶¶ 4, 6-15, 17-23, 27-30, Exs. 1, 2.) General Council has also shown that it cannot be held vicariously liable for the perpetrator's torts because the sexual abuse of a minor does not fall within the course and scope of a youth leader's agency/employment with a church/religious organization. (Rita M., supra, 187 Cal.App.3d at p. 1461; Jeffrey E. v. Central Baptist Church (1988) 197 Cal.App.3d 718, 722, 724 (Jeffrey E.) ["Sexual molestation is in no way related to [teaching Sunday school...], or any of the other tasks that are required of a [church Sunday school teacher or member].' "]; see Def. SSMF Nos. 18, 24, 35-37, 81.) "It would defy every notion of logic and fairness to say that sexual activity between a [minor child] and a [youth leader] is characteristic of the [religious organization's enterprise]...." (Rita M., at p. 1461.) "Because sexually abusing a [child] is not within the course and scope of employment of a [church] employee, a [church organization] is not vicariously liable for the abuse itself," although it may be liable under other theories, for example, negligent hiring, retention, or supervision. (Roe v. Hesperia Unified School District (2022) 85
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		Cal.App.5th 13, 25; see Rita M., at p. 1461 [Archbishop not liable under respondeat superior for sexual abuse of minor by priests]; Jeffrey E., supra, 197 Cal.App.3d at p. 724 [church not liable under respondeat superior for molestation of student by Sunday school teacher]; see also John R. v. Oakland Unified School Dist. (1989) 48 Cal.3d 438 [school district not vicariously liable under respondeat superior for molestation by teacher]; Alma W. v. Oakland Unified School Dist. (1981) 123 Cal.App.3d 133, 139-142 [school district not vicariously liable for rape of student by janitor].) General Council has also met its initial burden to show that the first, second, and seventh causes of action fail to the extent they are alleged against it under a ratification theory. (See C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094, 1110-1111 [ratification]; Samantha B. v. Aurora Vista Del Mar, LLC (2022) 77 Cal.App.5th 85, 109 [same].) As discussed above, General Council has submitted evidence showing that the perpetrator was not an agent/employee of General Council at any time, and that it was not involved in and had no authority or control whatsoever over the Royal Rangers program at plaintiff's church or any of the agents/employees of that program or church, and thus could not have authorized perpetrator's activities. (See Def. SSMF Nos. 3, 5, 8, 15-17, 20-31.) General Council has also submitted evidence showing it had no knowledge of the alleged sexual abuse at any time prior to this lawsuit, and therefore could not have ratified it. (See Def. SSMF Nos. 32-34, 83-84.) This shifts the burden to plaintiff to produce evidence demonstrating a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2) [burden]; see Aguilar, supra, 25 Cal.4th at pp. 850-851.) Plaintiff has failed to meet this burden. As to vicarious liability, plaintiff has not produced any evidence suggesting that childhood sexual abuse is characteristic of the activities of the General Council's enterprise such that
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	General Council may be vicariously liable for the abuse itself. (See Pl. Resp. to Def. SSMF Nos. 18 [undisputed that the perpetrator was Darryl, who was a group leader of the Royal Rangers youth group at plaintiff's church], 35-37, 81 [undisputed]; Pl. Addl. MF Nos. 1-2, 6-9.) This alone causes the first, second, and seventh causes of action to fail to the extent they rely on a vicarious liability theory, as a principal/employer is only vicariously liable for an agent/employee's torts committed within the course and scope of the agency/employment. (Mary M., supra, 54 Cal.3d at p. 208; Rita M., supra, 187 Cal.App.3d at p. 1461; see Roe v. Hesperia Unified School District, supra, 85 Cal.App.5th at p. 25.) Further, even if plaintiff had somehow shown that sexual abuse is characteristic of General Council's enterprise (which he has not), plaintiff has also failed to produce evidence showing the perpetrator was an agent or employee of the General Council. As briefly noted above, General Council's evidence shows it is a separate legal entity from its affiliated churches, including Walnut Valley; that the affiliated churches are completely self-governing, sovereign, and autonomous; and that General Council does not, and cannot, oversee, control, or otherwise interfere with any of the operations of a church, including a church's Royal Rangers youth group program. General Council also painstakingly distinguishes between its Royal Rangers division/department—which produces Royal Rangers curriculum that any church (including churches not affiliated with the General Council) may purchase and use in any manner it chooses—versus the Royal Ranger groups/programs the churches implement and run. In doing so, General Council emphasizes that its Royal Rangers division has zero oversight, control, or authority over any Royal Rangers groups/programs at any church affiliated with or outside its fellowship, and that all Royal Rangers groups are the independent province of the local church. (See Def. SSMF Nos. 1-17, 20-31; Kesner Decl. ¶¶ 4, 6-15, 17-23, 27-30, Exs. 1, 2.)
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	Completely ignoring this critical distinction, plaintiff repeatedly claims that “Royal Rangers was a subdivision within General Council’s organizational structure” and that “therefore members of the Royal Rangers are also members of the Defendant,” citing to certain portions of the deposition transcript of General Council’s person most knowledgeable, Brad Kesler, attached as exhibit 1 to the declaration of plaintiff’s counsel. (See, e.g., Pl. Resp. to Def. SSMF Nos. 10, 12-17, 22, 24, 29-30, 47-49, 54-55; West Decl. ¶ 3, Ex. 1.) Nothing in this exhibit, however, reveals a triable issue of material fact; Mr. Kesler’s deposition testimony is wholly consistent with General Council’s assertions. (See West Decl. at Ex. 1; see also Kesler Decl. ¶¶ 4-30; Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865, 876 [“The opposing party’s responses to the separate statement must be in good faith, responsive, and material”; the court “should ... not hesitate to disregard attempts to game the system by the opposing party claiming facts are ‘disputed’ when the uncontroverted evidence clearly shows otherwise.”].) Plaintiff also “disputes” General Council’s assertions that the perpetrator was never a member, volunteer, employee, or agent of the General Council, by claiming “Darryl was a volunteer of the Royal Rangers program which is not a separate legal entity, but a division of the Royal Rangers,” and citing to “Defendant’s Ex. C, SPROG [special interrogatory] No. 33.” (Pl. Resp. to Def. SSMF Nos. 25-28.) But there is no such “SPROG No. 33” or any response thereto. (See Sikkema Decl. at Ex. C [attaching plaintiff’s responses to General Council’s first set of special interrogatories]; see also Champlin/GEI Wind Holdings, LLC v. Avery (2023) 92 Cal.App.5th 218, 226 (Champlin) [opposition separate statements must cite to facts and evidence for the evidence to be considered by the court].) Plaintiff has therefore failed to meet his shifted burden to produce evidence demonstrating a triable issue of material fact as to whether the perpetrator was an agent/employee of
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		General Council for purposes of vicarious liability. Plaintiff has also failed to produce any evidence of ratification. Plaintiff has not submitted any evidence showing General Council authorized the alleged sexual abuse, or that it had any knowledge of the subject abuse prior to this lawsuit such that it could have ratified it. (See C.R. v. Tenet Healthcare Corp., supra, 169 Cal.App.4th at pp. 1110-1111 [ratification]; see also Pl. Resp. to Def. SSMF Nos. 32-34 [undisputed], 83-84 [undisputed as to when defendant first learned of the abuse].) 4th & 5th causes of action for negligence and negligent supervision. General Council has met its initial burden to show the fourth and fifth causes of action for negligence and negligent supervision have no merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at pp. 850-851; Brown v. USA Taekwondo (2021) 11 Cal.5th 204, 213 (Brown) [elements].) General Council has demonstrated that it did not have a “special relationship” wither either plaintiff or the perpetrator, and therefore did not owe a duty to plaintiff. (See Brown, supra, 11 Cal.5th at pp. 209, 214-216 [generally, one owes no duty to control the conduct of another, nor to warn those endangered by such conduct; exceptions to this general rule includes the “special relationship” exception]; id. at pp. 215-216 [“special relationship” defined]; Regents of University of California v. Superior Court (2018) 4 Cal.5th 607, 619-621 [same; “common features” of a special relationship]; Barenborg v. Sigma Alpha Epsilon Fraternity (2019) 33 Cal.App.5th 70, 78.) Again, although General Council had a division called “Royal Rangers” that developed curriculum and related resources that were available to the local churches to whatever extent a church decided to utilize them (Def. SSMF No. 21)—its evidence shows it had absolutely no oversight, control, or other authority over any
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		Royal Rangers groups/programs at any church, including the Royal Rangers program at Walnut Valley. "General Council had no role in any decisions of Walnut Valley ... to hire, maintain, supervise or oversee any employment or volunteer activities of Darryl, if any," and Walnut Valley was not subject to General Council's control with respect to any such decisions. (Def. SSMF Nos. 29, 31.) Indeed, its Constitution and Bylaws prohibited it from interfering with any such operations. (Def. SSMF No. 30.) General Council's evidence also shows that the local church properties, including any Royal Rangers facilities or camps, and the properties where the alleged abuse took place, were not owned, controlled, or maintained by the General Council, but rather by the local church or some other entity. (See Def. SSMF Nos. 1-17, 20-31; Kesner Decl. ¶¶ 4, 6-15, 17-23, 27-30.) This is sufficient to show that General Council lacked any control over Walnut Valley's Royal Rangers program and thus was not in a unique position to protect participants such as plaintiff from the risk of harm. To find a special relationship exists, the harm to be prevented must be one the defendant is in a position to protect against. (Barenborg, supra, 33 Cal.App.5th at p. 78.) General Council's evidence shows it had no such role or ability. (See Def. SSMF No. 29-31.) "Where the defendant has neither performed an act that increases the risk of injury to the plaintiff nor sits in a relation to the parties that creates an affirmative duty to protect the plaintiff from harm, ... our cases have uniformly held the defendant owes no legal duty to the plaintiff." (Brown, supra, 11 Cal.5th at pp. 216, 222.) Plaintiff has failed to meet his burden to produce evidence demonstrating a triable issue of material fact on this issue. (See Code Civ. Proc., § 437c, subd. (p)(2) [burden]; see Aguilar, supra, 25 Cal.4th at pp. 850-851.) Plaintiff has not submitted any evidence suggesting General Council had any oversight, control, or authority over the Royal Rangers program at Walnut Valley or any
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		other church. Instead, plaintiff has ignored the distinction between General Council's Royal Rangers division, which merely produces curriculum and related resources, from the Royal Ranger groups/programs that the churches implement and run, to conclude that "Royal Rangers was a subdivision within General Council's organizational structure" and "therefore members of the Royal Rangers [were] also members of the Defendant." (See, e.g., Pl. Resp. to Def. SSMF Nos. 214, 216-221, 226, 228.) As discussed, the only evidence plaintiff cites in support of this assertion consists of certain portions of Mr. Kesler's deposition transcript, which does not reveal any triable issues and is entirely consistent with defendant's version of the facts. (See West Decl. at Ex. 1; see also Kesler Decl. ¶¶ 4-30.) Plaintiff also notes that "General Council ... maintained records for affiliated churches and received Annual Church Ministry Reports showing that Walnut Valley operated a Royal Rangers program." (See Opp. at p. 12, citing Pl. Addl. MF Nos. 15-18.) This does not, however, suggest that General Council oversaw, controlled, or had any authority over Walnut Valley's operations or its Royal Rangers program. Indeed, Mr. Kesler's deposition testimony shows that consistent with its Constitution and Bylaws providing that the individual churches are self-governing, sovereign, and autonomous—the General Council did not require its affiliated churches to provide or maintain "Annual Church Ministry Reports" (ACMRs) or any other documentation beyond their initial affiliation form when the church opens/becomes affiliated with the General Council; that the ACMRs were only voluntary; and that the ACMRs simply provided basic information about "the number of salvations..., baptisms, membership[s]," and "what kind of ministries the church does," as "kind of a way of ... gathering statistics." (West Decl. at Ex. 1 [Kesler Depo. pp. 12:4-15, 14:1-15:17, 26:1-7].) Therefore, the mere fact that General Council may have had some ACMRs for Walnut Valley does not
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		somehow show it had any control over the church or its operations. Finally, plaintiff again claims that "Darryl was a volunteer of the Royal Rangers program which is not a separate legal entity, but a division of the Royal Rangers," citing to "Defendant's Ex. C, SPROG No. 33"—but again, there is no such "SPROG No. 33." (See Pl. Resp. to Def. SSMF Nos. 229-232; see also Sikkema Decl. at Ex. C; Champlin, <i>supra</i>, 92 Cal.App.5th at p. 226 [opposition separate statements must cite to facts and evidence for the evidence to be considered by the court].) Plaintiff has therefore failed to meet his shifted burden to produce evidence demonstrating a triable issue of material fact as to the existence of a duty. 3rd & 6th causes of action, sexual harassment and violation of civil rights. On 4/18/25, the court sustained General Council's demurrer to first amended complaint (FAC) with respect to the third and sixth causes of action for sexual harassment and violation of civil rights with 10 days leave to amend, and plaintiff never amended these claims. The time to amend has long since passed and General Council has now successfully moved for summary judgment on the FAC. As such, both the third and sixth causes of action are hereby dismissed with prejudice. (See Code Civ. Proc., § 581, subd. (d) ["Except as otherwise provided in subdivision (e), the court shall dismiss the complaint, or any cause of action asserted in it, in its entirety or as to any defendant, with prejudice, when upon the trial and before the final submission of the case, the plaintiff abandons it."]; see also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 7:144.) General Council shall give notice.
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3	Saadeh vs. Bdair 2022-01248722	Motion to Be Relieved as Counsel of Record The motion of attorney Robert A. von Esch IV and David V. Luu of von Esch Law Group ALC to withdraw as attorney of record for Defendant Goldenlinens, LLC is GRANTED and effective upon filing of the proof of service on client. (Code Civ. Proc. § 284, CRC 3.1362.) Moving attorney is to give notice.
7	Strategic Business Holdings, INC. vs. Zoom Business Brokers 2024-01446779	Motion for Summary Judgment and/or Adjudication As a preliminary statement, the court notes that the issues of whether or whether not a fiduciary duty existence is a question of law for the court to decide. <i>Clake v. Hoek</i> (1985) 174 Cal.App.3d 208. Conflicting expert opinion testimony on whether a defendant owed a duty to a plaintiff does not create a disputed factual issue on the existence of such duty, because duty remains a matter of law for the court to decide. <i>Clarke v. Hoek</i> (1985) 174 Cal.App.3d 208. Whether such a duty exists and the scope of that duty are questions of law, which courts consider de novo. <i>Lorenzo v. Calex Engineering, Inc.</i> (2025) 110 Cal.App.5th 49. With regard to Strategic’s proposed “issue of duties,” many of the items appear to conflate multiple questions—whether the agreement modified common law duties, what the scope of those duties were, and whether those duties included disclosure of the buyer's intent to violate federal law—without completely disposing of the ultimate question of whether Zoom owed a fiduciary duty to Strategic. As discussed below, not all of the issues are entirely appropriate for adjudication. Plaintiff Strategic Business Holdings, Inc.’s motion for summary adjudication as to its

		claims against defendants Zoom Business Brokers ("Zoom"), Jim Moazez ("Moazez"), Sara Vaziri Fard ("Vaziri") and James Williams Mucciola ("Mucciola") is GRANTED in part and DENIED in part as follows: Summary adjudication as to issue 1 is denied. California law does require that exclusive representation agreements contain a definite, specified date of final and complete termination. However, whether a broker has an affirmative duty to release a principal from such an agreement, as opposed to whether the principal has a contractual right to terminate or whether the agreement is enforceable, is not the type of duty question contemplated by the summary adjudication statute. The fiduciary duties a broker owes concern how the broker must act within the agency relationship, not whether the broker must terminate that relationship upon request. Summary adjudication as to issue 2 is granted. Zoom contends the contract between the parties specifically agreed in the Representation Agreement that any action involving any breach of duty, etc. shall not be brought more than 1 year after the expiration of the agreement. Strategic contends the language does not apply to a common law claim for breach of fiduciary duty. Strategic is correct. Courts will generally enforce parties' agreements for a shorter limitations period than otherwise provided by statute, provided it is reasonable. <i>Moreno v. Sanchez</i> (2003) 106 Cal.App.4th 1415. Parties to a contract may stipulate therein for a period of limitation shorter than that fixed by the statute of limitations, and that such stipulation violates no principle of public policy, provided the period fixed is not so unreasonable as to show imposition or undue advantage. <i>Zalkind v. Ceradyne, Inc.</i> (2011) 194 Cal.App.4th 1010.
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		However, a significant constraint applies in the exclusive representation context. Where a breach of fiduciary duty claim is based on a common law fiduciary duty — rather than a duty that arises under the contract itself — the contractual limitations clause does not govern the timeliness of that claim, and the applicable statutory limitations period controls instead. <i>William L. Lyon & Associates, Inc. v. Superior Court</i> (2012) 204 Cal.App.4th 1294. In <i>William L. Lyon</i>, the court concluded that breach of fiduciary duty, fraud, negligence, and negligent misrepresentation claims based on common law fiduciary duty did not arise under the buyer-broker agreement, and therefore the applicable statutes of limitations governed those claims rather than the contractual limitations provision. This distinction is particularly relevant in exclusive representation agreements. In <i>Field v. Century 21 Klowden-Forness Realty</i> (1998) 63 Cal.App.4th 18, the court recognized that a broker who exclusively represents a purchaser owes a fiduciary duty rooted in common law, and that the statutory limitations framework, not a contractual provision tied to a seller's broker statute, governs such claims. In sum, plaintiff's claims are not barred by the contractual statute of limitations provision. Summary adjudication as issue 3 is granted in part and denied in part. The Court grants adjudication as to the legal component (whether the contract modified the common law duties) and denies adjudication as to whether that duty prohibited Zoom from refusing Strategic's demand to be released from the Written Exclusive Representation Contract so that Strategic could be represented by a new broker. Summary adjudication as to issue 4 is granted.
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	This issue asserts that Zoom's fiduciary duty compelled disclosure of the buyer's intent to violate federal law. A broker's duty of disclosure extends to facts materially affecting the value or desirability of the property, including violations of zoning regulations and building codes. <i>Horiike v. Coldwell Banker</i> (2016) 1 Cal.5th 1024. Whether a buyer's undisclosed intent to use or obtain property in violation of federal law constitutes a material fact within the scope of the broker's disclosure duty to the seller is a legal question about the scope of duty. The existence of the fiduciary relationship and the general duty of full disclosure are not genuinely disputed under the law; the contested question is whether the specific category of information (buyer's intent to violate federal law) falls within the duty's scope. In light of the above, the Court grants adjudication as to this issue of duty (but makes no determination as to whether that duty was actually violated.) Summary adjudication as to issue 5 is granted for the same reasons set forth in connection with issue 4. Summary adjudication as to issue 6 is granted. The specific allegation — that Zoom referred the buyer to litigation counsel to take adverse legal action against Strategic — falls squarely within the recognized scope of the duty of loyalty. An agent has the duty not to act as, or on account of, an adverse party without the principal's consent. <i>Oakland Raiders v. National Football League</i> (2005) 131 Cal.App.4th 621. Assisting a party in initiating litigation against one's own principal would constitute precisely the type of adverse action that the duty of loyalty is designed to prohibit. But again, the grant is only as to the issue of duty, not as to whether Zoom actually breached that duty.
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	Summary adjudication as to issue 7 is granted for the reasons discussed above in connection with issue 6. Summary adjudication as to issue 8 is granted. The proposition that Moazez, as Zoom's licensed salesperson and associate licensee in a dual agency, owed Strategic the same fiduciary duties — including the duty of loyalty — that Zoom owed Strategic presents a well-defined legal question with clear statutory and judicial authority. California Civil Code § 2079.13 expressly equates the associate licensee's duty with the broker's duty, and Horiike confirms that this equivalence applies fully in dual agency contexts. The issue is not novel or unsettled. Summary adjudication as to issue 9 is denied. The issue is not appropriate for adjudication as stated because it misstates the legal framework governing partnership fiduciary duties. A partner's fiduciary duties run to the partnership and to the other partners, not automatically to third parties such as Strategic. California Corporations Code § 16404 provides that the fiduciary duties a partner owes to the partnership and the other partners are the duty of loyalty and the duty of care. The duty of loyalty includes the obligation to account to the partnership and hold as trustee for it any property, profit, or benefit derived by the partner in the conduct and winding up of the partnership business, including the appropriation of a partnership opportunity. The statute frames these duties as running between partners and to the partnership — not to outside third parties. The fiduciary duty owed between partners extends to all aspects of the partnership relationship and all transactions between the partners. <i>BT-1 v. Equitable Life Assurance Society of the United States</i> (1999) 75 Cal.App.4th 1406. Partners are held to the
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		standards and duties of a trustee in their dealings with each other, and in proceedings connected with the conduct of a partnership, partners are bound to act in the highest good faith to their copartners. Everest Investors 8 v. McNeil Partners (2003) 114 Cal.App.4th 411. These duties are owed to copartners and the partnership — not to outside entities like Strategic. California courts have reinforced that to plead a cause of action for breach of fiduciary duty, there must be a fiduciary relationship between the parties. Everest, id. A nonfiduciary cannot be held liable for conspiring to breach a duty owed only by a fiduciary, and the mere fact that one party is a partner of a fiduciary does not automatically extend that fiduciary's duties to the partner vis-à-vis third parties. The issue assumes that Vaziri, by virtue of being Moazez's partner, automatically inherited the same fiduciary duties Moazez owed to Strategic. This framing is legally flawed. The fiduciary duty owed among partners is not unlimited and applies only to situations where one partner could take advantage of his position to reap personal profit or act to the partnership's detriment. Crouse v. Brobeck, Phleger & Harrison (1998) 67 Cal.App.4th 1509. Moreover, a partner owes no fiduciary duties to another party solely by reason of being a partner. The existence of a fiduciary duty depends on the actual relationship between the parties, not on imputation from a co-partner's separate obligations. Summary adjudication as to issue 10 is denied. The issue as framed conflates two distinct legal concepts. Under Civil Code § 2079.13(b), an associate licensee owes a duty to each party in a real property transaction that is equivalent to the duty owed each party by the broker under whom the associate licensee functions. Horiike v. Coldwell Banker Residential Brokerage Co. (2016) 1 Cal.5th 1024. In Horiike the court
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		confirmed that this statutory equivalence means a salesperson acting under a broker owes the same fiduciary duties — including loyalty — as the employing broker. However, a designated officer of a corporate broker occupies a different role: the designated officer's statutory obligation runs to supervision and compliance, not directly to the client as an associate licensee's does. So, the issue as framed — that Mucciola, as Zoom's designated officer/broker, owed Strategic the same fiduciary duties Zoom owed Strategic — is appropriate for adjudication only if Mucciola was also acting as an associate licensee directly representing Strategic in the transaction, not merely in his capacity as a supervisory designated officer. The court in <i>Sandler v. Sanchez</i> (2012) 206 Cal.App.4th 1431, made clear that the supervisory duty under § 10159.2 does not, standing alone, give rise to a personal fiduciary duty claim by a third-party client. A viable claim would require additional facts showing Mucciola's direct personal involvement in representing Strategic. Objections Zoom's objections to the declaration of Benjamin Martin are overruled. Strategic's objection to the declaration of Sara Vaziri is sustained as to #3 and overruled to the remainder. Strategic's objections to the declaration of Jim Moazez are sustained as to #3 and overruled as to the remainder. Notice Strategic shall give notice.
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